

Court No. - 32

Case :- WRIT - C No. - 36821 of 2019

Petitioner :- Mohammad Swale Wahid Husain

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajay Kumar Srivastava

**Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Saurabh Shyam Shamshery,J.

This writ petition has been filed, interalia, for the following reliefs:

"(I) Issue a writ, order or direction in the nature of certiorari for quashing the recovery proceedings initiated against the petitioner in pursuance of the demand notice dated 09.09.2019 issued by respondent no. 2 for realizing of Rs.1,18,432/- interest + recovery charges.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 not to harass and pressurized the petitioner in pursuance of demand notice dated 09.09.2019."

Heard learned counsel for the petitioner, Shri Kamal Kesarwani holding brief of Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the

learned counsel for the Electricity Department.

In view of the above, this writ petition is dismissed as not maintainable on the ground of alternative remedy.

Order Date :- 15.11.2019

Arun